

TEXT EXTRACT of Drive PDF 1CEVRtpuiVfsTe-EUPmXMLhqvMrlxqOJi

Original filename: EVIDENCE ATO was super taxed appropriately EVIDENCE Australian Tax Office
Our reply to your super enquiry SECOFFICIALSensitive.pdf

Source account: richarddrawsstuff@gmail.com

Note: binary download failed this session. Extracted text only.

From: Dr Rich McLean rich@richmclean.com.au

Subject: Fwd: Our reply to your super enquiry [SEC=OFFICIAL:Sensitive]

Date: 11 November 2020 at 2:15 pm

To: Mason Fennessy-Kent mfennessykent@mauriceblackburn.com.au

Dear Mason

I received this email today to a question I wrote months ago!

As you can see they say this is not binding on the commissioner and that I need to contact the funds directly

They did not specifically say that it has been taxed correctly

Since I have signed over investigative powers to you, despite what AFCA have said I will leave this in your capable hands to dig a bit deeper if need be

No one has explained to me the % inconsistency on the two main amounts

In any case it gives you the dates the two TPD claims were paid out

I hope this helps mate-let me know if I can be of further help, or just shoot me a message acknowledging this email

Kindly,

Dr Rich McLean

Registered NDIS Provider | Arts-Life-Coach | Artist | PhD Researcher | Victoria University

www.richmclean.com.au

Call me on +61 400639248

Email me at rich@richmclean.com.au

I acknowledge the Indigenous people as the traditional custodians of the land where we live, learn & work.

This email sent from my iPhone

Begin forwarded message:

From: SEO Advice <seoadvice@ato.gov.au>

Date: 11 November 2020 at 10:33:55 am AEDT

To: Rich McLean <rich@richmclean.com.au>

Subject: Our reply to your super enquiry [SEC=OFFICIAL:Sensitive]

Reference ID: 1051779463843

Hello Richard

Thank you for your e-mail received 28 April 2020 asking whether super lump sum (SLS) payments paid to you during the 2007-08 financial year had the correct withholding tax amounts deducted by your super funds. We apologise for the delay in this reply.

We have provided the following guidance. Please note this guidance is general in nature and is not binding on the Commissioner.

SLS payments are taxed in accordance to what components the payment is made up of, and your age at the time of the payment.

Fund | Tax Free Component | Taxed Taxable Component | Tax Withheld

Just Super | 0.00 | 7,773 | 1,671

Just Super | 70,272 | 19,3274 | 4,155

Health Super | 67,030 | 7363 | 1,583

In all three cases, no tax was withheld on the tax free component of your SLS payments and only the taxed taxable components had 21.5% tax and Medicare levy withheld by your super funds. The tax withheld by your funds are in accordance with our super lump sum withholding tax table based on what the SLS was made up of (Taxed Taxable Component) and your age at the time of the payment.

If you want to know how your funds calculated the components of your SLS payments and why they

made that payment to you, please contact the relevant fund who made the payment as only they can provide you that information.

If you have any questions phone us on 13 10 20 between 8.00am and 5.00pm, Monday to Friday.

Australian Taxation Office. The information transmitted is for the use of the intended recipient only.